

Padmavati W/O Kamleshkumar Lakhani vs State Of Gujarat on 24 March, 2021

Author: Sonia Gokani

Bench: Sonia Gokani, Gita Gopi

R/CR.MA/17913/2020

ORDER

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/CRIMINAL MISC.APPLICATION NO. 17913 of 2020
In R/CRIMINAL REVISION APPLICATION NO. 1005 of 2017
With
CRIMINAL MISC.APPLICATION (FOR AMENDMENT) NO. 1 of 2021
In R/CRIMINAL MISC.APPLICATION NO. 17913 of 2020

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PADMAVATI W/O KAMLESHKUMAR LAKHANI
Versus
STATE OF GUJARAT

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Appearance:

MS.P J.JOSHI(3888) for the Applicant(s) No. 1,2,3
MR RAJESH K KANANI(2157) for the Respondent(s) No. 2
PUBLIC PROSECUTOR(2) for the Respondent(s) No. 1

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CORAM: HONOURABLE MS. JUSTICE SONIA GOKANI
and
HONOURABLE MS. JUSTICE GITA GOPI

Date : 24/03/2021

ORAL ORDER

(PER : HONOURABLE MS. JUSTICE SONIA GOKANI) We have heard both the sides. Before we pass the final order, one more opportunity will be given to the parties as they had already entered into an agreement dated 09th December, 2020, which was worked out mutually by the parties with an aim to finally settle the disputes. Both the sides have agreed to abide by the deed of compromise which has been arrived at, although certain dispute with regard to interest will remain on the sum of Rs.23.00 lakhs so also of valuables. However, once the directions as being given are followed, those issues need redressed. For now, the following directions are being issued:

R/CR.MA/17913/2020 ORDER (1) The amount of Rs.23.00 lakhs shall be deposited with the Registry of this Court within a period of one week, preferably on or before 01st April, 2021.

(2) Once the amount is deposited, the Registry shall intimate to this Court about the status of such deposit and necessary order for release on apportionment of this amount towards the maintenance shall be passed by this Court.

(3) On deposit of this amount, the preparation shall be made by both the sides for taking necessary steps by way of filing application under Section 13-B of the Hindu Marriage Act before the concerned Family Court.

(4) Any such application is filed, the concerned Family Court shall be requested for expeditious hearing of the matter without waiting for the period of six months under Section 13- B(2) to be over as the husband has already initiated the proceedings under Section 13(A)(1) of the Hindu Marriage Act which is pending before the Family Court, Ahmedabad.

(5) Neither side shall proceed with the legal proceedings Civil or Criminal concerning matrimonial disputes, which they have initiated before the respective courts till 01st April, 2021.

(6) The execution of the order passed by the Court shall remain stay till 01st April, 2021. If the amount of Rs.23.00 lakhs is not deposited on or before 01st April, 2021, this stay shall automatically stand vacated without any requirement of this Court passing any other or further order.

R/CR.MA/17913/2020 ORDER Let the matter be posted for hearing on 01st April, 2021.

(SONIA GOKANI, J) (GITA GOPI,J) A.M.A. SAIYED